

SENATE No. 442

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve establishing a special commission on special education funding.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No. 442

By Ms. Rausch, a petition (accompanied by resolve, Senate, No. 442) of Rebecca L. Rausch for legislation to establish a special commission on special education funding. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve establishing a special commission on special education funding.

1 **Resolved**, (a) There shall be a special legislative commission to investigate and study
2 state funding of special education services in the commonwealth. The commission shall examine
3 the chapter 70 funding formula and the special education circuit breaker program and investigate
4 how to improve state funding of special education services.

5 (b) The commission shall consist of the following members: the secretary of education or
6 his designee, who shall serve as chair; the commissioner of the department of elementary and
7 secondary education, or his designee; the house and senate chairs of the joint committee on
8 education, or their respective designees; 1 member appointed by the president of the senate, who
9 shall be an advocate for individuals with disabilities; 1 member appointed by the speaker of the
10 house, who shall have expertise in transportation of students with disabilities; 1 member
11 appointed by the senate minority leader; 1 member appointed by the house minority leader; the
12 president of the Massachusetts chapter of the American Federation of Teachers; the executive
13 director of the Massachusetts Association of School Superintendents; the executive director of
14 the Massachusetts Association of School Committees; the executive director of the

Massachusetts Association of Approved Special Education schools; and up to 3 additional individuals appointed by the chair.

(c) All appointments shall be made not later than 90 days after the effective date of this act.

(d) The commission shall make recommendations for: (i) changes to the chapter 70 calculation of foundation aid to accommodate increases in inflation and costs; (ii) changes to the chapter 70 required local contribution calculation; (iii) raising the threshold for or removing the cap on local contributions under chapter 70; (iv) reforming the penalty for localities deemed below effort in their contributions; (v) improving the special education circuit breaker program to better supplement local funding; and (vi) other matters related to special education funding subject to the discretion of the commission.

(e) Not later than March 6, 2026, the commission shall submit its report and recommendations for proposed legislation to the senate and house committees on ways and means, the chairs of the joint committee on education, and the clerks of the house and senate. The department of elementary and secondary education shall publish the report on its website.